COMMERCIAL AGREEMENT - RECORD 012

Helioscope Robotics, Inc. - diligence file reference COMMERCIAL_CONTRACTS-012

1. Recitals and defined terms

This Component Supply Agreement is made between Helioscope Robotics, Inc. as Provider and Larkspur Sensor Technologies Inc. as Supplier, a optical sensing business organised in California, contracting through Larkspur Sensor Technologies Inc.. Larkspur and the Provider have agreed that terms defined in the recitals and in Schedule 5 carry the same meaning throughout, and that a defined term used in an Order has the meaning given here unless the Order expressly varies it.

Larkspur and the Provider agree that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. Tighter here than standard: the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. In optical sensing the burden of this sits with operations, and Larkspur discharges it across 1 site under the Component Supply Agreement. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 15 (Limitation of Liability) is where it is evidenced.

Larkspur Sensor Technologies Inc. undertakes that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In effect, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. Larkspur runs 1 site from California in optical sensing, so the Component Supply Agreement is administered locally and this clause is applied per site. For a supplier of Larkspur's size the clause is unremarkable, but Article 20 (Notices) is drafted more tightly here than in the Provider's standard form.

Under Article 10 (Change Control) of the Component Supply Agreement, telemetry generated by a Unit belongs to the Provider, while data describing the Customer's operations, inventory or personnel belongs to the Customer, and neither licence extends beyond the term. On the negotiated text, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. California is where Larkspur runs optical sensing operations across 1 site, and the Component Supply Agreement follows that footprint. Larkspur has taken the point up once since signature; the correspondence is filed against Article 14 (Indemnities) and did not result in an amendment.

Neither Larkspur nor the Provider may treat Article 14 (Indemnities) as permitting the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. In effect, performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Component Supply Agreement reaches each of Larkspur's 1 site separately, which is how a optical sensing operator in California administers it. The Larkspur relationship is managed against Article 9 (Customer Obligations) at each quarterly review, and any variance is minuted there rather than in the Order.

Larkspur supply agreement - Schedule 5 - Notices, Periods and Addressees

Larkspur notice type	Subject	Period	Addressee	Method	Deemed given
LAR-N001	change of control	5 days	Contracts Manager	courier and email	on despatch
LAR-N002	renewal election	35 days	General Counsel	portal notice	on despatch
LAR-N003	force majeure	85 days	designated account executive	courier and email	on receipt
LAR-N004	assignment request	60 days	Chief Operating Officer	portal notice	on despatch
LAR-N005	change of control	20 days	General Counsel	courier only	on the second business day after despatch
LAR-N006	assignment request	50 days	Contracts Manager	portal notice	on receipt
LAR-N007	renewal election	30 days	Chief Operating Officer	portal notice	on receipt
LAR-N008	assignment request	10 days	General Counsel	courier and email	on receipt
LAR-N009	force majeure	30 days	designated account executive	portal notice	on despatch
LAR-N010	service credit claim	70 days	Chief Operating Officer	email with acknowledgement	on despatch

Larkspur notice type	Subject	Period	Addressee	Method	Deemed given
LAR-N011	renewal election	80 days	Contracts Manager	courier and email	on the second business day after despatch
LAR-N012	renewal election	80 days	General Counsel	courier only	on receipt
LAR-N013	non-renewal	80 days	General Counsel	portal notice	on despatch
LAR-N014	service credit claim	25 days	designated account executive	email with acknowledgement	on despatch
LAR-N015	price adjustment	90 days	Chief Operating Officer	courier and email	on the second business day after despatch
LAR-N016	force majeure	90 days	designated account executive	email with acknowledgement	on receipt
LAR-N017	termination for cause	55 days	General Counsel	courier and email	on receipt
LAR-N018	non-renewal	60 days	Contracts Manager	courier only	on the second business day after despatch
LAR-N019	price adjustment	60 days	General Counsel	portal notice	on despatch
LAR-N020	service credit claim	35 days	Contracts Manager	portal notice	on the second business day after despatch
LAR-N021	renewal election	50 days	General Counsel	courier only	on despatch
LAR-N022	force majeure	15 days	General Counsel	courier only	on despatch
LAR-N023	assignment request	60 days	General Counsel	email with acknowledgement	on receipt
LAR-N024	breach	40 days	Chief Operating Officer	courier only	on despatch
LAR-N025	termination for cause	60 days	Contracts Manager	courier and email	on receipt
LAR-N026	force majeure	15 days	designated account executive	email with acknowledgement	on despatch
LAR-N027	breach	15 days	General Counsel	courier only	on the second business day after despatch
LAR-N028	assignment request	60 days	Chief Operating Officer	courier and email	on the second business day after despatch
LAR-N029	assignment request	5 days	designated account executive	courier only	on despatch
LAR-N030	assignment request	85 days	General Counsel	courier only	on the second business day after despatch
LAR-N031	termination for cause	70 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
LAR-N032	change of control	30 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
LAR-N033	change of control	30 days	designated account executive	email with acknowledgement	on receipt
LAR-N034	termination for cause	15 days	General Counsel	courier and email	on receipt
LAR-N035	non-renewal	40 days	Chief Operating Officer	courier only	on despatch
LAR-N036	assignment request	75 days	Chief Operating Officer	courier and email	on receipt
LAR-N037	renewal election	20 days	Contracts Manager	email with acknowledgement	on receipt
LAR-N038	renewal election	70 days	Contracts Manager	email with acknowledgement	on despatch
LAR-N039	force majeure	65 days	Chief Operating Officer	courier and email	on receipt
LAR-N040	service credit claim	30 days	Chief Operating Officer	courier and email	on despatch
LAR-N041	service credit claim	15 days	Chief Operating Officer	email with acknowledgement	on the second business day after despatch
LAR-N042	service credit claim	60 days	designated account executive	email with acknowledgement	on the second business day after despatch
LAR-N043	price adjustment	85 days	designated account executive	email with acknowledgement	on the second business day after

Larkspur notice type	Subject	Period	Addressee	Method	Deemed given
					despatch
LAR-N044	assignment request	85 days	Chief Operating Officer	courier and email	on despatch
LAR-N045	force majeure	85 days	General Counsel	email with acknowledgement	on despatch
LAR-N046	service credit claim	25 days	Contracts Manager	portal notice	on the second business day after despatch
LAR-N047	force majeure	85 days	General Counsel	portal notice	on receipt
LAR-N048	termination for cause	45 days	General Counsel	courier and email	on despatch
LAR-N049	breach	85 days	Chief Operating Officer	courier only	on the second business day after despatch
LAR-N050	termination for cause	60 days	Contracts Manager	email with acknowledgement	on the second business day after despatch
LAR-N051	assignment request	45 days	Contracts Manager	courier only	on the second business day after despatch
LAR-N052	non-renewal	65 days	designated account executive	email with acknowledgement	on receipt
LAR-N053	assignment request	20 days	Chief Operating Officer	courier only	on despatch
LAR-N054	assignment request	30 days	Contracts Manager	courier only	on despatch
LAR-N055	non-renewal	40 days	designated account executive	courier only	on the second business day after despatch
LAR-N056	termination for cause	75 days	designated account executive	email with acknowledgement	on receipt
LAR-N057	force majeure	80 days	Contracts Manager	email with acknowledgement	on despatch
LAR-N058	price adjustment	5 days	Chief Operating Officer	portal notice	on receipt
LAR-N059	change of control	25 days	Contracts Manager	portal notice	on despatch
LAR-N060	force majeure	50 days	Chief Operating Officer	portal notice	on receipt
LAR-N061	assignment request	55 days	General Counsel	courier only	on the second business day after despatch
LAR-N062	assignment request	40 days	designated account executive	email with acknowledgement	on receipt
LAR-N063	force majeure	45 days	designated account executive	courier and email	on receipt
LAR-N064	service credit claim	45 days	Contracts Manager	courier only	on despatch
LAR-N065	termination for cause	50 days	General Counsel	courier and email	on receipt
LAR-N066	termination for cause	40 days	designated account executive	portal notice	on despatch
LAR-N067	non-renewal	70 days	Chief Operating Officer	courier only	on despatch
LAR-N068	force majeure	45 days	Contracts Manager	email with acknowledgement	on despatch
LAR-N069	renewal election	10 days	Chief Operating Officer	portal notice	on receipt
LAR-N070	price adjustment	35 days	Chief Operating Officer	courier and email	on despatch
LAR-N071	breach	25 days	Chief Operating Officer	email with acknowledgement	on receipt
LAR-N072	price adjustment	40 days	General Counsel	portal notice	on the second business day after despatch
LAR-N073	termination for cause	20 days	Contracts Manager	portal notice	on receipt
LAR-N074	change of control	60 days	Chief Operating Officer	courier and email	on receipt
LAR-N075	price adjustment	20 days	General Counsel	email with acknowledgement	on the second business day after despatch
LAR-N076	breach	70 days	Chief Operating Officer	courier and email	on the second business day after despatch

Larkspur notice type	Subject	Period	Addressee	Method	Deemed given
LAR-N077	price adjustment	60 days	General Counsel	courier only	on receipt
LAR-N078	assignment request	60 days	Chief Operating Officer	courier and email	on despatch

2. Scope of supply and orders

Except as Article 14 (Indemnities) permits, confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. Procedurally, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Site count matters here: Larkspur has 1 site, and the Component Supply Agreement treats each as a separate delivery point. The obligation as it applies to Larkspur was tightened at signature, and Article 21 (Governing Law and Disputes) carries the negotiated wording rather than the standard wording.

The parties have recorded in Exhibit D that confidential information is used only for the purposes of the agreement, disclosed only to those who need it, and returned or destroyed on request at the end of the term. As agreed, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Running 1 site in optical sensing, Larkspur takes this obligation at site level rather than centrally under the Component Supply Agreement. The Larkspur file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Larkspur Sensor Technologies Inc. is entitled to require that the limitation of liability applies to claims of every kind except those expressly carved out, and the carve-outs are exhaustive rather than illustrative. On timing, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. 1 site in California means Larkspur applies the Component Supply Agreement through its regional operations team rather than through head office. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 2 (Definitions) is where it is evidenced.

Larkspur pays the fees under Schedule 5 in consideration of the Provider's undertaking that the fees are payable within the period stated in the fee exhibit, and interest accrues on a late payment at the rate stated there without further demand. Procedurally, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. 1 site in California means Larkspur applies the Component Supply Agreement through its regional operations team rather than through head office. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 11 (Data and Telemetry) is where it is evidenced.

3. Delivery, title and risk

As between Larkspur and the Provider, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. Materially, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. For Larkspur, a optical sensing operator running 1 site out of California, the point matters because the Component Supply Agreement is administered site by site. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 3 (Scope of Supply) is where it is evidenced.

Where Article 11 (Data and Telemetry) applies, the Customer provides power, network and floor conditions to the tolerances stated in the site schedule, and a failure to do so suspends the corresponding availability commitment. On the negotiated text, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Operating 1 site, Larkspur applies the Component Supply Agreement at the point of delivery, as optical sensing practice requires. Because Larkspur operates in optical sensing, the practical burden of this clause falls on its California operation, and Article 3 (Scope of Supply) governs how it is measured.

For the purposes of the Component Supply Agreement, the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. On the wording, performance is measured against the exhibit and not against any statement made in the parties' correspondence. The Component Supply Agreement reaches each of Larkspur's 1 site separately, which is how a

optical sensing operator in California administers it. Larkspur has taken the point up once since signature; the correspondence is filed against Article 12 (Intellectual Property) and did not result in an amendment.

Larkspur Sensor Technologies Inc. has notified the Provider that title to a Unit remains with the Provider throughout the term while risk passes on delivery to the site, so that neither party may assert the other's position on loss. Tighter here than standard: the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. California is where Larkspur runs optical sensing operations across 1 site, and the Component Supply Agreement follows that footprint. Notices under Article 2 (Definitions) go to the contracting entity named in the recital and not to any Larkspur affiliate that may operate a site.

Larkspur supply agreement - Exhibit A - Fee Schedule and Annual Escalator

Larkspur fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
LAR-F001	gateway appliance	17	$2,875	$48,875	4.3%	on renewal only
LAR-F002	AMR-400 heavy unit	9	$7,538	$67,842	5.6%	annually on the anniversary
LAR-F003	charge dock	15	$2,158	$32,370	5.4%	annually on the anniversary
LAR-F004	lift attachment	18	$7,923	$142,614	2.4%	on renewal only
LAR-F005	lift attachment	15	$6,292	$94,380	3.7%	annually each January
LAR-F006	tote carrier	31	$5,453	$169,043	2.4%	not escalated
LAR-F007	AMR-200 mobile unit	8	$4,804	$38,432	4.8%	not escalated
LAR-F008	gateway appliance	30	$3,494	$104,820	4.1%	on renewal only
LAR-F009	AMR-400 heavy unit	31	$6,397	$198,307	4.4%	on renewal only
LAR-F010	lift attachment	9	$5,159	$46,431	2.9%	on renewal only
LAR-F011	gateway appliance	17	$1,913	$32,521	5.2%	not escalated
LAR-F012	gateway appliance	11	$6,841	$75,251	3.6%	annually each January
LAR-F013	AMR-400 heavy unit	28	$7,620	$213,360	2.5%	on renewal only
LAR-F014	tote carrier	22	$3,067	$67,474	2.2%	not escalated
LAR-F015	safety scanner kit	39	$8,291	$323,349	4.6%	not escalated
LAR-F016	gateway appliance	40	$9,507	$380,280	4.1%	annually on the anniversary
LAR-F017	AMR-400 heavy unit	15	$3,368	$50,520	3.9%	annually each January
LAR-F018	AMR-400 heavy unit	9	$9,346	$84,114	5.8%	not escalated
LAR-F019	gateway appliance	29	$9,777	$283,533	3.5%	annually each January
LAR-F020	tote carrier	31	$1,842	$57,102	5.3%	on renewal only
LAR-F021	gateway appliance	34	$4,768	$162,112	3.0%	annually on the anniversary
LAR-F022	gateway appliance	15	$8,002	$120,030	4.0%	annually on the anniversary
LAR-F023	gateway appliance	2	$7,410	$14,820	4.9%	annually on the anniversary
LAR-F024	charge dock	35	$9,433	$330,155	5.8%	not escalated
LAR-F025	lift attachment	25	$5,933	$148,325	4.9%	annually each January
LAR-F026	lift attachment	21	$5,408	$113,568	2.6%	annually on the anniversary
LAR-F027	charge dock	38	$5,725	$217,550	2.4%	not escalated
LAR-F028	safety scanner kit	2	$5,482	$10,964	2.2%	not escalated
LAR-F029	tote carrier	10	$2,052	$20,520	2.4%	not escalated
LAR-F030	fleet controller	16	$3,767	$60,272	4.0%	not escalated
LAR-F031	charge dock	25	$7,857	$196,425	2.9%	not escalated
LAR-F032	gateway appliance	35	$1,310	$45,850	5.4%	on renewal only
LAR-F033	gateway appliance	32	$3,200	$102,400	5.9%	annually each January
LAR-F034	lift attachment	21	$5,589	$117,369	2.1%	annually on the

Larkspur fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
						anniversary
LAR-F035	lift attachment	29	$7,491	$217,239	2.9%	on renewal only
LAR-F036	charge dock	18	$7,269	$130,842	4.3%	annually on the anniversary
LAR-F037	safety scanner kit	18	$8,799	$158,382	3.5%	annually each January
LAR-F038	fleet controller	32	$7,778	$248,896	5.3%	annually on the anniversary
LAR-F039	safety scanner kit	11	$5,420	$59,620	3.9%	not escalated
LAR-F040	AMR-200 mobile unit	28	$1,972	$55,216	4.5%	not escalated
LAR-F041	AMR-400 heavy unit	40	$5,091	$203,640	5.9%	not escalated
LAR-F042	AMR-400 heavy unit	5	$8,356	$41,780	4.6%	annually each January
LAR-F043	gateway appliance	8	$7,936	$63,488	3.5%	annually on the anniversary
LAR-F044	safety scanner kit	21	$1,782	$37,422	3.0%	not escalated
LAR-F045	fleet controller	6	$4,145	$24,870	2.4%	annually on the anniversary
LAR-F046	AMR-400 heavy unit	32	$5,655	$180,960	4.9%	on renewal only
LAR-F047	safety scanner kit	18	$7,910	$142,380	4.6%	annually on the anniversary
LAR-F048	AMR-400 heavy unit	18	$5,217	$93,906	3.8%	on renewal only
LAR-F049	AMR-400 heavy unit	21	$2,196	$46,116	3.1%	not escalated
LAR-F050	AMR-200 mobile unit	6	$7,697	$46,182	3.6%	on renewal only
LAR-F051	fleet controller	2	$1,893	$3,786	2.2%	on renewal only
LAR-F052	AMR-200 mobile unit	26	$4,286	$111,436	2.2%	annually on the anniversary
LAR-F053	safety scanner kit	35	$9,821	$343,735	2.8%	annually each January
LAR-F054	gateway appliance	32	$3,105	$99,360	2.6%	annually each January
LAR-F055	gateway appliance	17	$2,600	$44,200	3.6%	on renewal only
LAR-F056	charge dock	29	$3,014	$87,406	2.0%	annually on the anniversary
LAR-F057	lift attachment	28	$9,464	$264,992	2.7%	on renewal only
LAR-F058	charge dock	11	$2,440	$26,840	3.6%	annually on the anniversary
LAR-F059	charge dock	36	$1,964	$70,704	5.5%	annually each January
LAR-F060	gateway appliance	29	$1,472	$42,688	2.3%	on renewal only
LAR-F061	tote carrier	17	$3,576	$60,792	4.8%	annually each January
LAR-F062	AMR-400 heavy unit	27	$6,024	$162,648	2.9%	not escalated
LAR-F063	gateway appliance	23	$6,646	$152,858	3.2%	annually each January
LAR-F064	AMR-200 mobile unit	35	$3,282	$114,870	5.7%	annually on the anniversary
LAR-F065	charge dock	29	$9,302	$269,758	5.5%	on renewal only
LAR-F066	gateway appliance	38	$4,829	$183,502	2.4%	annually on the anniversary
LAR-F067	lift attachment	27	$5,732	$154,764	3.8%	annually each January
LAR-F068	charge dock	8	$6,641	$53,128	4.2%	annually each January
LAR-F069	fleet controller	20	$3,387	$67,740	3.9%	annually on the anniversary
LAR-F070	AMR-400 heavy unit	31	$1,849	$57,319	2.3%	annually each January
LAR-F071	AMR-400 heavy unit	8	$8,644	$69,152	3.6%	on renewal only

Larkspur fee line	Item	Quantity	Unit fee	Extended fee	Annual escalator	Escalation timing
LAR-F072	lift attachment	33	$9,339	$308,187	4.8%	on renewal only
LAR-F073	tote carrier	12	$8,991	$107,892	4.6%	annually on the anniversary
LAR-F074	charge dock	23	$6,811	$156,653	2.1%	annually on the anniversary
LAR-F075	AMR-200 mobile unit	28	$4,228	$118,384	3.0%	annually on the anniversary
LAR-F076	fleet controller	25	$6,421	$160,525	3.2%	not escalated
LAR-F077	fleet controller	23	$9,638	$221,674	2.2%	annually each January
LAR-F078	AMR-400 heavy unit	36	$5,999	$215,964	5.5%	not escalated
LAR-F079	AMR-400 heavy unit	21	$3,357	$70,497	3.9%	not escalated
LAR-F080	tote carrier	33	$8,196	$270,468	4.8%	on renewal only
LAR-F081	gateway appliance	19	$3,564	$67,716	3.6%	annually each January
LAR-F082	lift attachment	5	$8,541	$42,705	5.9%	annually each January
LAR-F083	charge dock	14	$1,187	$16,618	3.0%	not escalated
LAR-F084	lift attachment	15	$1,378	$20,670	3.3%	on renewal only
LAR-F085	charge dock	12	$3,140	$37,680	3.7%	on renewal only
LAR-F086	safety scanner kit	31	$5,386	$166,966	2.7%	on renewal only
LAR-F087	tote carrier	17	$5,759	$97,903	4.4%	annually on the anniversary
LAR-F088	safety scanner kit	39	$9,183	$358,137	2.3%	on renewal only

4. Fees, invoicing and escalation

Larkspur pays the fees under Schedule 5 in consideration of the Provider's undertaking that acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As a matter of construction, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. The Component Supply Agreement reaches each of Larkspur's 1 site separately, which is how a optical sensing operator in California administers it. Where Larkspur has raised a query the Provider has answered by reference to Article 5 (Delivery and Title), and the exchange is on the contract file.

Subject to Article 5 (Delivery and Title), acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. In substance, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. The Component Supply Agreement reaches each of Larkspur's 1 site separately, which is how a optical sensing operator in California administers it. Larkspur has taken the point up once since signature; the correspondence is filed against Article 14 (Indemnities) and did not result in an amendment.

The parties have recorded in Exhibit D that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. In substance, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Larkspur treats the obligation as a site-level matter across its 1 site in California, consistent with the Component Supply Agreement. Larkspur has taken the point up once since signature; the correspondence is filed against Article 18 (Assignment) and did not result in an amendment.

Read with Exhibit B, acceptance testing runs against the protocol annexed to the Order, and a test conducted against any other protocol does not constitute acceptance however the parties may have described it. As agreed, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Larkspur treats the obligation as a site-level matter across its 1 site in California, consistent with the Component Supply Agreement. Larkspur has taken the point up once since signature; the correspondence is filed against Article 19 (Confidentiality) and did not result in an amendment.

5. Service levels and credits

Larkspur is not obliged, under Exhibit B, to accept that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. On any reading, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. In optical sensing the burden of this sits with operations, and Larkspur discharges it across 1 site under the Component Supply Agreement. Larkspur has taken the point up once since signature; the correspondence is filed against Article 9 (Customer Obligations) and did not result in an amendment.

As between Larkspur and the Provider, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. On the wording, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Larkspur runs 1 site from California in optical sensing, so the Component Supply Agreement is administered locally and this clause is applied per site. Because Larkspur operates in optical sensing, the practical burden of this clause falls on its California operation, and Article 4 (Orders and Quantities) governs how it is measured.

Article 14 (Indemnities) provides that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On the wording, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. Larkspur runs 1 site from California in optical sensing, so the Component Supply Agreement is administered locally and this clause is applied per site. For a supplier of Larkspur's size the clause is unremarkable, but Article 21 (Governing Law and Disputes) is drafted more tightly here than in the Provider's standard form.

The parties have recorded in Exhibit D that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. In terms of consequence, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. Because Larkspur is a California optical sensing business with 1 site, the Component Supply Agreement devolves this to the site manager. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 11 (Data and Telemetry) is where it is evidenced.

6. Acceptance and change control

Nothing in Exhibit B entitles Larkspur to assume that a change to scope takes effect only through a signed change order identifying its price and schedule effect, and work performed without one is at the Provider's risk. On this point, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Site count matters here: Larkspur has 1 site, and the Component Supply Agreement treats each as a separate delivery point. Notices under Article 15 (Limitation of Liability) go to the contracting entity named in the recital and not to any Larkspur affiliate that may operate a site.

On a proper construction of Exhibit D, either party may terminate for a material breach not remedied within the cure period, and the terminating party's other remedies are unaffected by having terminated. Materially, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Larkspur treats the obligation as a site-level matter across its 1 site in California, consistent with the Component Supply Agreement. The obligation as it applies to Larkspur was tightened at signature, and Article 3 (Scope of Supply) carries the negotiated wording rather than the standard wording.

On the terms of Exhibit A, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. On the negotiated text, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. This bites at Larkspur's 1 site, since a optical sensing operator administers the Component Supply Agreement where the units work. Because Larkspur operates in optical sensing, the practical burden of this clause falls on its California operation, and Article 4 (Orders and Quantities) governs how it is measured.

Article 3 (Scope of Supply) provides that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Operationally, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. For Larkspur, a optical sensing operator running 1 site out of California, the point matters because the Component Supply

Agreement is administered site by site. The Larkspur relationship is managed against Article 4 (Orders and Quantities) at each quarterly review, and any variance is minuted there rather than in the Order.

Larkspur supply agreement - Schedule 2 - Sites and Operating Patterns

Larkspur site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
LAR-S001	Granite facility	16	2026-07-25	single shift	shared	accepted
LAR-S002	Crestline facility	6	2025-03-16	continuous	Customer furnished	accepted
LAR-S003	Harborline facility	33	2026-11-04	two shifts	shared	not commenced
LAR-S004	Keystone facility	29	2025-10-08	single shift	Provider furnished	not commenced
LAR-S005	Keystone facility	37	2025-02-27	continuous	Customer furnished	accepted
LAR-S006	Mesa facility	21	2024-02-02	single shift	shared	accepted with punch list
LAR-S007	Mesa facility	19	2025-03-27	continuous	Provider furnished	accepted with punch list
LAR-S008	Mesa facility	11	2024-02-02	continuous	Provider furnished	pending acceptance
LAR-S009	Dayton facility	4	2025-01-20	two shifts	Provider furnished	accepted with punch list
LAR-S010	Evergreen facility	8	2026-03-06	two shifts	Customer furnished	not commenced
LAR-S011	Larkspur facility	31	2025-01-20	two shifts	shared	not commenced
LAR-S012	Meridian facility	10	2024-04-25	two shifts	Provider furnished	accepted
LAR-S013	Larkspur facility	4	2026-03-03	continuous	Customer furnished	accepted with punch list
LAR-S014	Harborline facility	28	2025-10-22	single shift	shared	accepted with punch list
LAR-S015	Meridian facility	15	2026-01-21	two shifts	Customer furnished	pending acceptance
LAR-S016	Keystone facility	5	2026-10-27	two shifts	shared	accepted
LAR-S017	Granite facility	38	2024-07-16	two shifts	shared	not commenced
LAR-S018	Meridian facility	22	2026-12-14	continuous	shared	pending acceptance
LAR-S019	Mesa facility	15	2024-11-21	single shift	Provider furnished	accepted
LAR-S020	Dunbar facility	22	2025-01-27	continuous	Customer furnished	accepted
LAR-S021	Harborline facility	28	2025-09-12	continuous	shared	accepted with punch list
LAR-S022	Juniper facility	9	2026-04-25	single shift	Provider furnished	pending acceptance
LAR-S023	Larkspur facility	32	2025-05-23	continuous	Provider furnished	accepted with punch list
LAR-S024	Mesa facility	38	2026-09-17	continuous	shared	pending acceptance
LAR-S025	Harborline facility	38	2025-03-19	two shifts	Provider furnished	accepted
LAR-S026	Granite facility	12	2025-04-21	two shifts	shared	not commenced
LAR-S027	Granite facility	30	2026-10-14	single shift	Provider furnished	accepted with punch list
LAR-S028	Larkspur facility	39	2025-08-20	two shifts	Customer furnished	accepted
LAR-S029	Harborline facility	12	2026-09-10	two shifts	shared	not commenced
LAR-S030	Harborline facility	4	2026-01-23	two shifts	shared	pending acceptance
LAR-S031	Crestline facility	21	2025-02-11	two shifts	Provider furnished	not commenced
LAR-S032	Evergreen facility	16	2026-09-25	single shift	shared	pending acceptance
LAR-S033	Larkspur facility	8	2024-03-16	continuous	Customer furnished	accepted with punch list
LAR-S034	Crestline facility	30	2026-04-07	two shifts	shared	accepted with punch list
LAR-S035	Harborline	27	2026-11-27	two shifts	Provider	accepted with

Larkspur site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
	facility				furnished	punch list
LAR-S036	Evergreen facility	16	2024-12-11	two shifts	shared	not commenced
LAR-S037	Harborline facility	7	2025-12-24	single shift	Customer furnished	not commenced
LAR-S038	Mesa facility	8	2024-04-09	continuous	shared	accepted
LAR-S039	Fathom facility	39	2025-09-11	two shifts	Customer furnished	not commenced
LAR-S040	Crestline facility	34	2025-02-27	single shift	Provider furnished	accepted with punch list
LAR-S041	Evergreen facility	16	2026-11-01	two shifts	shared	not commenced
LAR-S042	Evergreen facility	38	2024-02-13	single shift	Customer furnished	accepted
LAR-S043	Mesa facility	28	2025-04-09	two shifts	Customer furnished	not commenced
LAR-S044	Juniper facility	11	2025-09-22	single shift	Customer furnished	accepted with punch list
LAR-S045	Evergreen facility	18	2025-10-25	two shifts	shared	accepted with punch list
LAR-S046	Dayton facility	16	2025-07-03	continuous	shared	pending acceptance
LAR-S047	Fathom facility	23	2025-12-15	two shifts	shared	accepted
LAR-S048	Dayton facility	10	2024-04-27	single shift	Provider furnished	pending acceptance
LAR-S049	Mesa facility	31	2025-02-24	two shifts	Provider furnished	not commenced
LAR-S050	Harborline facility	8	2026-08-24	continuous	shared	not commenced
LAR-S051	Dayton facility	23	2024-05-01	continuous	Customer furnished	accepted
LAR-S052	Evergreen facility	18	2025-12-08	single shift	Provider furnished	pending acceptance
LAR-S053	Mesa facility	20	2026-04-23	single shift	shared	accepted with punch list
LAR-S054	Mesa facility	30	2025-07-25	two shifts	Customer furnished	accepted with punch list
LAR-S055	Harborline facility	25	2026-05-06	continuous	Provider furnished	pending acceptance
LAR-S056	Meridian facility	14	2026-03-12	single shift	shared	pending acceptance
LAR-S057	Larkspur facility	6	2025-12-03	single shift	shared	not commenced
LAR-S058	Harborline facility	23	2024-06-12	continuous	shared	not commenced
LAR-S059	Fathom facility	24	2024-05-05	continuous	Provider furnished	accepted
LAR-S060	Juniper facility	7	2025-02-12	continuous	Customer furnished	not commenced
LAR-S061	Granite facility	35	2025-05-19	continuous	Provider furnished	not commenced
LAR-S062	Larkspur facility	24	2026-04-05	continuous	shared	accepted with punch list
LAR-S063	Crestline facility	22	2026-09-27	single shift	Provider furnished	pending acceptance
LAR-S064	Granite facility	11	2024-10-09	single shift	Customer furnished	not commenced
LAR-S065	Granite facility	24	2024-06-18	two shifts	Provider furnished	not commenced
LAR-S066	Fathom facility	5	2026-06-02	continuous	Provider furnished	pending acceptance
LAR-S067	Dunbar facility	4	2026-11-19	continuous	Customer furnished	accepted with punch list
LAR-S068	Dayton facility	34	2025-05-01	continuous	Customer furnished	accepted
LAR-S069	Mesa facility	15	2026-07-18	continuous	Customer furnished	not commenced
LAR-S070	Juniper facility	13	2026-04-13	two shifts	Customer furnished	pending acceptance
LAR-S071	Fathom facility	39	2024-08-14	continuous	shared	accepted with punch list
LAR-S072	Fathom facility	35	2026-07-16	single shift	shared	accepted

Larkspur site reference	Location	Units	Go-live date	Operating pattern	Network provision	Acceptance status
LAR-S073	Dunbar facility	7	2026-03-23	two shifts	Provider furnished	pending acceptance
LAR-S074	Mesa facility	39	2025-03-18	single shift	Provider furnished	accepted
LAR-S075	Mesa facility	24	2025-12-19	two shifts	Customer furnished	accepted with punch list
LAR-S076	Dunbar facility	4	2025-06-06	two shifts	Provider furnished	accepted
LAR-S077	Fathom facility	16	2024-12-03	two shifts	shared	accepted with punch list
LAR-S078	Dayton facility	34	2026-01-07	single shift	Customer furnished	accepted with punch list
LAR-S079	Harborline facility	5	2026-07-18	continuous	shared	accepted
LAR-S080	Larkspur facility	26	2026-05-09	continuous	Customer furnished	accepted with punch list
LAR-S081	Meridian facility	36	2026-09-12	continuous	Customer furnished	pending acceptance
LAR-S082	Granite facility	23	2025-05-26	two shifts	Provider furnished	accepted
LAR-S083	Crestline facility	19	2025-09-04	two shifts	shared	pending acceptance
LAR-S084	Mesa facility	7	2025-04-05	two shifts	Provider furnished	accepted

7. Data, intellectual property and licences

Larkspur Sensor Technologies Inc. is entitled to require that spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. On timing, an estoppel does not arise from the Customer's forbearance, and a waiver is effective only in writing signed by an authorised officer. Because Larkspur is a California optical sensing business with 1 site, the Component Supply Agreement devolves this to the site manager. Nothing in the Larkspur negotiation history qualifies Article 11 (Data and Telemetry), and a reviewer should not read the pre-signature drafts as doing so.

Larkspur retains the right, notwithstanding Article 4 (Orders and Quantities), to require that the Provider furnishes evidence of the insurances required before the first Unit is delivered, and maintains them for the term and for two years afterwards. Intended effect: time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. In optical sensing the burden of this sits with operations, and Larkspur discharges it across 1 site under the Component Supply Agreement. Where Larkspur has raised a query the Provider has answered by reference to Article 8 (Acceptance), and the exchange is on the contract file.

Larkspur bears the risk that the Provider notifies the Customer of a security incident affecting Customer data within the period stated in the security exhibit, with the facts then known and without waiting for completeness. Materially, a failure here is remediable, and the cure period runs from receipt of notice rather than from the breach itself. The Component Supply Agreement reaches each of Larkspur's 1 site separately, which is how a optical sensing operator in California administers it. The Larkspur file records the position as at the last amendment, and Article 7 (Service Levels) is the reference a reviewer should cite when raising it.

On a proper construction of Exhibit C, personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. In substance, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. California is where Larkspur runs optical sensing operations across 1 site, and the Component Supply Agreement follows that footprint. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 7 (Service Levels) is where it is evidenced.

8. Indemnities and limitation of liability

Larkspur Sensor Technologies Inc. has notified the Provider that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Textually, the provision survives termination for the period stated, and the survival is not

conditional on the reason for termination. In optical sensing the burden of this sits with operations, and Larkspur discharges it across 1 site under the Component Supply Agreement. Because Larkspur operates in optical sensing, the practical burden of this clause falls on its California operation, and Article 21 (Governing Law and Disputes) governs how it is measured.

On a proper construction of Schedule 5, the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. As drafted, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Larkspur treats the obligation as a site-level matter across its 1 site in California, consistent with the Component Supply Agreement. Notices under Article 15 (Limitation of Liability) go to the contracting entity named in the recital and not to any Larkspur affiliate that may operate a site.

Subject to Article 3 (Scope of Supply), personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. As to enforcement, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Larkspur is a California optical sensing business with 1 site, the Component Supply Agreement devolves this to the site manager. The Larkspur file records the position as at the last amendment, and Article 21 (Governing Law and Disputes) is the reference a reviewer should cite when raising it.

Larkspur and the Provider agree that on expiry the Provider provides transition assistance for the period stated, at the rates in the fee exhibit, and does not withhold cooperation pending a payment dispute. As a matter of construction, the mechanism is procedural: notice, a period to respond, and a defined consequence if the period passes without response. Running 1 site in optical sensing, Larkspur takes this obligation at site level rather than centrally under the Component Supply Agreement. The Larkspur relationship is managed against Article 16 (Term and Termination) at each quarterly review, and any variance is minuted there rather than in the Order.

Larkspur supply agreement - Schedule 3 - Deployment Milestones and Payment Triggers

Larkspur milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
LAR-M001	integration test passed	2024-07	7	no delay	$228,438	no payment attached
LAR-M002	steady-state handover	2026-06	9	network provisioning	$89,703	invoiceable on acceptance
LAR-M003	full acceptance	2024-11	29	seasonal freeze	$37,482	invoiceable on acceptance
LAR-M004	pilot acceptance	2026-06	26	no delay	$251,867	invoiceable on certification
LAR-M005	pilot acceptance	2024-03	10	no delay	$134,844	no payment attached
LAR-M006	network readiness certified	2025-08	26	Customer IT dependency	$162,515	invoiceable on certification
LAR-M007	site survey complete	2026-07	2	Customer IT dependency	$265,815	invoiceable on acceptance
LAR-M008	integration test passed	2025-08	on plan	labour agreement	$203,820	no payment attached
LAR-M009	full acceptance	2024-01	32	Customer IT dependency	$120,868	no payment attached
LAR-M010	integration test passed	2024-10	29	facility readiness	$177,035	invoiceable on acceptance
LAR-M011	pilot acceptance	2024-03	17	network provisioning	$22,315	no payment attached
LAR-M012	steady-state handover	2025-07	8	labour agreement	$257,751	invoiceable on certification
LAR-M013	full acceptance	2026-11	8	no delay	$94,745	invoiceable on certification
LAR-M014	warranty commencement	2024-01	27	labour agreement	$132,930	invoiceable on acceptance
LAR-M015	steady-state handover	2026-04	28	seasonal freeze	$132,770	no payment attached
LAR-M016	site survey complete	2025-06	4	facility readiness	$14,015	invoiceable on certification
LAR-M017	warranty commencement	2026-12	8	Customer IT dependency	$111,880	no payment attached

Larkspur milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
LAR-M018	integration test passed	2025-05	25	facility readiness	$197,129	no payment attached
LAR-M019	units delivered	2024-08	13	network provisioning	$242,649	invoiceable on acceptance
LAR-M020	steady-state handover	2026-09	16	facility readiness	$225,930	invoiceable on certification
LAR-M021	units delivered	2025-07	13	seasonal freeze	$61,204	invoiceable on certification
LAR-M022	units delivered	2025-05	10	facility readiness	$39,952	invoiceable on certification
LAR-M023	site survey complete	2025-06	28	facility readiness	$146,617	no payment attached
LAR-M024	units delivered	2026-04	14	no delay	$122,626	invoiceable on acceptance
LAR-M025	integration test passed	2024-06	6	no delay	$207,935	invoiceable on acceptance
LAR-M026	site survey complete	2025-01	21	facility readiness	$142,550	invoiceable on certification
LAR-M027	steady-state handover	2025-08	30	labour agreement	$104,019	invoiceable on acceptance
LAR-M028	full acceptance	2026-07	6	no delay	$65,178	invoiceable on acceptance
LAR-M029	steady-state handover	2026-07	20	seasonal freeze	$104,842	no payment attached
LAR-M030	steady-state handover	2026-01	7	Customer IT dependency	$35,026	no payment attached
LAR-M031	steady-state handover	2024-03	11	facility readiness	$72,591	no payment attached
LAR-M032	full acceptance	2026-01	8	network provisioning	$197,577	invoiceable on acceptance
LAR-M033	units delivered	2026-08	19	labour agreement	$243,202	invoiceable on acceptance
LAR-M034	steady-state handover	2025-09	27	network provisioning	$71,780	invoiceable on acceptance
LAR-M035	network readiness certified	2024-01	18	Customer IT dependency	$163,597	invoiceable on certification
LAR-M036	units delivered	2024-06	10	seasonal freeze	$253,198	invoiceable on certification
LAR-M037	full acceptance	2024-05	17	facility readiness	$56,719	invoiceable on certification
LAR-M038	site survey complete	2025-10	24	facility readiness	$207,039	no payment attached
LAR-M039	network readiness certified	2024-07	20	facility readiness	$158,546	invoiceable on acceptance
LAR-M040	site survey complete	2025-09	10	network provisioning	$233,273	invoiceable on certification
LAR-M041	units delivered	2025-06	13	seasonal freeze	$151,734	invoiceable on certification
LAR-M042	site survey complete	2024-12	18	labour agreement	$193,667	invoiceable on acceptance
LAR-M043	steady-state handover	2024-06	31	no delay	$238,618	invoiceable on acceptance
LAR-M044	steady-state handover	2026-07	17	facility readiness	$253,503	invoiceable on acceptance
LAR-M045	pilot acceptance	2026-03	12	network provisioning	$164,955	invoiceable on acceptance
LAR-M046	site survey complete	2025-12	23	facility readiness	$216,220	invoiceable on certification
LAR-M047	network readiness certified	2026-08	10	no delay	$243,946	invoiceable on acceptance
LAR-M048	integration test passed	2025-06	22	network provisioning	$221,268	invoiceable on acceptance
LAR-M049	site survey complete	2025-12	28	seasonal freeze	$136,534	no payment attached
LAR-M050	full acceptance	2026-05	4	seasonal freeze	$179,890	no payment attached
LAR-M051	steady-state handover	2025-06	3	no delay	$56,027	no payment attached

Larkspur milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
LAR-M052	site survey complete	2024-02	33	labour agreement	$248,140	invoiceable on acceptance
LAR-M053	steady-state handover	2024-08	8	seasonal freeze	$154,458	invoiceable on certification
LAR-M054	site survey complete	2024-12	29	seasonal freeze	$66,830	invoiceable on certification
LAR-M055	integration test passed	2026-02	30	labour agreement	$51,712	invoiceable on acceptance
LAR-M056	warranty commencement	2026-04	24	no delay	$182,557	invoiceable on acceptance
LAR-M057	site survey complete	2026-07	on plan	Customer IT dependency	$27,145	no payment attached
LAR-M058	steady-state handover	2026-04	6	no delay	$205,229	invoiceable on acceptance
LAR-M059	pilot acceptance	2025-02	25	seasonal freeze	$121,164	invoiceable on certification
LAR-M060	network readiness certified	2025-10	12	facility readiness	$64,973	invoiceable on certification
LAR-M061	integration test passed	2025-01	7	network provisioning	$136,877	invoiceable on certification
LAR-M062	pilot acceptance	2025-09	22	seasonal freeze	$86,692	invoiceable on acceptance
LAR-M063	site survey complete	2026-12	4	no delay	$32,834	invoiceable on certification
LAR-M064	site survey complete	2026-09	19	facility readiness	$173,774	invoiceable on certification
LAR-M065	network readiness certified	2024-11	1	labour agreement	$256,676	invoiceable on certification
LAR-M066	units delivered	2024-09	9	labour agreement	$48,452	invoiceable on certification
LAR-M067	integration test passed	2026-05	12	labour agreement	$267,139	invoiceable on certification
LAR-M068	full acceptance	2025-05	13	facility readiness	$253,291	invoiceable on acceptance
LAR-M069	warranty commencement	2025-03	24	facility readiness	$175,802	invoiceable on acceptance
LAR-M070	full acceptance	2024-08	17	labour agreement	$249,070	no payment attached
LAR-M071	units delivered	2025-11	21	labour agreement	$243,226	invoiceable on certification
LAR-M072	integration test passed	2024-04	18	Customer IT dependency	$133,332	no payment attached
LAR-M073	site survey complete	2026-04	9	no delay	$193,319	invoiceable on acceptance
LAR-M074	network readiness certified	2026-02	32	seasonal freeze	$110,427	no payment attached
LAR-M075	site survey complete	2024-10	18	seasonal freeze	$187,862	invoiceable on acceptance
LAR-M076	warranty commencement	2024-09	17	labour agreement	$126,168	no payment attached
LAR-M077	steady-state handover	2024-02	29	no delay	$31,702	no payment attached
LAR-M078	full acceptance	2025-05	30	seasonal freeze	$234,730	no payment attached
LAR-M079	steady-state handover	2024-03	18	no delay	$264,137	no payment attached
LAR-M080	steady-state handover	2025-11	29	network provisioning	$172,650	invoiceable on certification
LAR-M081	units delivered	2026-12	on plan	Customer IT dependency	$220,417	no payment attached
LAR-M082	pilot acceptance	2024-12	7	no delay	$198,273	invoiceable on acceptance
LAR-M083	steady-state handover	2024-11	2	no delay	$98,887	no payment attached
LAR-M084	steady-state handover	2024-10	12	facility readiness	$26,381	invoiceable on certification
LAR-M085	units delivered	2025-01	21	network provisioning	$217,295	invoiceable on certification

Larkspur milestone reference	Milestone	Planned	Slip days	Slip cause	Value attached	Payment trigger
LAR-M086	steady-state handover	2024-01	28	labour agreement	$140,332	no payment attached

9. Term, termination and transition

For the purposes of the Component Supply Agreement, the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. Intended effect: where the parties disagree on whether the standard has been met, the dispute goes to the escalation ladder before any termination right arises. For Larkspur, a optical sensing operator running 1 site out of California, the point matters because the Component Supply Agreement is administered site by site. Because Larkspur operates in optical sensing, the practical burden of this clause falls on its California operation, and Article 20 (Notices) governs how it is measured.

Neither Larkspur nor the Provider may treat Article 4 (Orders and Quantities) as permitting spare parts are held at the levels stated in the service exhibit, and a stock-out that causes downtime is treated as a Provider-caused outage for credit purposes. Practically, the obligation is absolute rather than reasonable-endeavours, and the drafting was amended at signature to make that plain. Because Larkspur is a California optical sensing business with 1 site, the Component Supply Agreement devolves this to the site manager. For a supplier of Larkspur's size the clause is unremarkable, but Article 10 (Change Control) is drafted more tightly here than in the Provider's standard form.

Larkspur Sensor Technologies Inc. has notified the Provider that the Provider indemnifies the Customer against a third-party claim that the Units infringe an intellectual property right, and may procure a licence, modify, or replace to resolve it. By design, time is of the essence for this obligation, which the parties recorded expressly because the default position would be otherwise. This bites at Larkspur's 1 site, since a optical sensing operator administers the Component Supply Agreement where the units work. Administration of this obligation for Larkspur sits with the account team rather than with central contracts, and Article 18 (Assignment) is where it is evidenced.

Larkspur Sensor Technologies Inc. undertakes that the Provider maintains the availability commitment measured over each calendar month, excluding only the outage categories expressly listed, and reports the measurement within ten business days. In substance, the provision survives termination for the period stated, and the survival is not conditional on the reason for termination. Larkspur treats the obligation as a site-level matter across its 1 site in California, consistent with the Component Supply Agreement. Larkspur has taken the point up once since signature; the correspondence is filed against Article 13 (Licences) and did not result in an amendment.

10. Assignment, notices and general

Under Article 12 (Intellectual Property) of the Component Supply Agreement, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. Negotiated position: the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. The Component Supply Agreement reaches each of Larkspur's 1 site separately, which is how a optical sensing operator in California administers it. Larkspur has taken the point up once since signature; the correspondence is filed against Article 21 (Governing Law and Disputes) and did not result in an amendment.

The Provider warrants to Larkspur that personnel attending a site comply with the Customer's safety induction, and the Provider remains responsible for their acts whether they are employees or subcontractors. By way of qualification, the remedy is exclusive for the breach it addresses, and does not displace remedies for a different breach of the same article. Larkspur runs 1 site from California in optical sensing, so the Component Supply Agreement is administered locally and this clause is applied per site. The obligation as it applies to Larkspur was tightened at signature, and Article 9 (Customer Obligations) carries the negotiated wording rather than the standard wording.

Article 21 (Governing Law and Disputes) provides that the Provider may substitute a component of equivalent or better specification, but may not substitute one that reduces throughput, safety rating or serviceability without written consent. Operationally, performance is measured against the exhibit and not against any statement made in the parties'

correspondence. California is where Larkspur runs optical sensing operations across 1 site, and the Component Supply Agreement follows that footprint. Notices under Article 14 (Indemnities) go to the contracting entity named in the recital and not to any Larkspur affiliate that may operate a site.

On the terms of Schedule 5, each Unit is delivered configured to the specification identified in the applicable Order, and a Unit delivered otherwise is not deemed delivered until reconfigured at the Provider's cost. As between them, the article is severable, and its unenforceability in one jurisdiction does not affect its operation elsewhere. 1 site in California means Larkspur applies the Component Supply Agreement through its regional operations team rather than through head office. The Larkspur file records the position as at the last amendment, and Article 13 (Licences) is the reference a reviewer should cite when raising it.